SERVICE AGREEMENT

Effective Date: [Date]

This Service Agreement (the "**Agreement**") is entered into as of the effective date set forth above, by and between:

Acme Corp, a Delaware corporation, with its principal place of business at 100 Innovation Drive, Suite 400, Wilmington, DE 19801 (the "**Service Provider**"); and

Global Industries Inc., a New York corporation, with its principal place of business at 250 Park Avenue, 12th Floor, New York, NY 10177 (the "**Client**").

RECITALS

WHEREAS, Service Provider is engaged in the business of providing professional consulting and technology services; and

WHEREAS, Client desires to retain Service Provider to perform certain services as described herein, and Service Provider desires to perform such services, subject to the terms and conditions set forth in this Agreement;

NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. Scope of Services

Service Provider shall provide to Client the professional consulting, technology implementation, and advisory services as described in Exhibit A attached hereto and incorporated herein by reference (the "**Services**"). Service Provider shall perform the Services in a professional and workmanlike manner, consistent with industry standards and practices. Any changes to the scope of Services shall require written agreement by both parties.

2. Compensation

In consideration for the Services, Client shall pay Service Provider a monthly fee of Five Thousand Dollars ($5,000.00), payable within thirty (30) days of receipt of Service Provider's invoice. Service Provider shall submit invoices on the first business day of each calendar month for services rendered during the preceding month. Late payments shall accrue interest at the rate of 1.5% per month or the maximum rate permitted by law, whichever is less.

3. Term

This Agreement shall commence on the Effective Date and shall continue for a period of twelve (12) months (the "**Initial Term**"), unless earlier terminated in accordance with Section 4. Following the Initial Term, this Agreement shall automatically renew for successive twelve (12) month periods (each a "**Renewal Term**") unless either party provides written notice of non-renewal at least sixty (60) days prior to the expiration of the then-current term.

4. Termination

Either party may terminate this Agreement at any time by providing thirty (30) days' prior written notice to the other party. Upon termination, Client shall pay Service Provider for all Services performed through the effective date of termination. Sections 5, 6, and 7 shall survive any termination or expiration of this Agreement.

5. Confidentiality

Each party acknowledges that it may receive or have access to confidential and proprietary information of the other party. Each party agrees to hold such information in strict confidence, to use it solely for the purposes of this Agreement, and not to disclose it to any third party without the prior written consent of the disclosing party. This obligation of confidentiality shall survive the termination of this Agreement for a period of three (3) years.

6. Limitation of Liability

IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING BUT NOT LIMITED TO LOSS OF PROFITS, DATA, OR BUSINESS OPPORTUNITIES, ARISING OUT OF OR RELATED TO THIS AGREEMENT, REGARDLESS OF THE THEORY OF LIABILITY. SERVICE PROVIDER'S TOTAL AGGREGATE LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID BY CLIENT IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

7. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of law provisions. Any dispute arising out of or relating to this Agreement shall be subject to the exclusive jurisdiction of the state and federal courts located in New Castle County, Delaware.

IN WITNESS WHEREOF, the parties have executed this Service Agreement as of the Effective Date first written above.

SERVICE PROVIDER	**CLIENT**
Acme Corp	**Global Industries Inc.**
_____	_____
Signature	Signature
_____	_____
Date	Date